

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Filed: _____

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Obadiah Lashley,

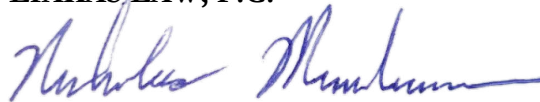
Plaintiff,

Index No.:

- against-

Plaintiff designates
New York County as the
place of trialThe City Of New York, Sergeant Yingyin Yu,
Shield No. 00087, and John Does #1-6,
Defendants.The basis of venue is:
The situs of occurrence-----X
TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, to, if the complaint is not served with the summons, to serve a notice of appearance, on the plaintiff's attorneys within twenty (20) days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: New York, New York
October 8, 2020The nature of this action is for violation of Plaintiff's Civil and Constitutional Rights.
The relief sought is monetary damages.**LIAKAS LAW, P.C.**

BY: Nicholas Mindicino, ESQ.

*Attorney for Plaintiff*65 Broadway, 13th Floor
New York, N.Y. 10006
(212) 937-7765**If you fail to respond, judgment will be entered against you, by default, with interest from Apr 10, 2019.**Defendants:City of New York
Office of the Corporation Counsel
100 Church Street
New York, New York 10007Sergeant Yingyin Yu, Shield No. 00087
New York Police Department - 1st Precinct
16 Ericsson Pl,
New York, NY 10013

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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Obadiah Lashley,

Plaintiff,

- against-

VERIFIED COMPLAINT

The City Of New York, Sergeant Yingyin Yu,
Shield No. 00087, and John Does #1-6,

Defendants.

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Plaintiff, by his attorneys, LIAKAS LAW, P.C., as and for this Complaint, alleges as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action in which plaintiff seeks relief through 42 U.S.C. §1983 and the laws of the State of New York for the violation of his right to be Free of Unreasonable Search and Seizure under the United States Constitution.

2. The claim arises from April 9, 2019 and July 19, 2019 incidents in which Officers of the New York City Police Department ("NYPD"), acting under color of state law, intentionally and willfully subjected plaintiff to false arrest and malicious prosecution.

3. Plaintiff seeks monetary damages (special, compensatory, and punitive) against defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court deems just and proper

JURISDICTION AND VENUE

4. Venue is proper in the Supreme Court of the State of New York, New York County, because the acts in question occurred in the State of New York, New York County, and the City

of New York is subject to personal jurisdiction in the Supreme Court of the State of New York, New York County.

PARTIES

5. Plaintiff, Obadiah Lashley (hereinafter “Plaintiff”), is a legal resident of the United States, residing in the State of New York, Kings County.

6. The City of New York (or “the City”) is a municipal corporation organized under the laws of the State of New York. At all times relevant hereto, Defendant City, acting through the New York Police Department (or “NYPD”), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.

7. Police Sergeant Yingyin Yu, Shield No. 00087, was, at all times here relevant a police officer of the NYPD, and as such was acting in the capacity of agent, servant and employee of the City of New York. On information and belief, defendant Yu was involved in the illegal arrest and prosecution of plaintiff and/or failed to intervene in the actions of his fellow officers. Defendant Yu is sued in his individual capacity.

8. John Does #1-6 are individuals whose name are currently unknown to plaintiff, are employees of the NYPD, and are sued in their individual capacities. John Does #1-3 were NYPD officers who participated in the search and arrest of plaintiff on April 9, 2019. John Does #4-6 were NYPD officers who participated in the search and arrest of plaintiff on July 19, 2019.

9. At all times here mentioned defendants were acting under color of state law, to wit, under

color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York

FACTUAL ALLEGATIONS

10. At all times here relevant, Plaintiff held a valid ticket seller license issued by the New York City Consumer Affairs Department.

11. Plaintiff worked as ticket seller, in compliance with his valid ticket seller license.

April 9, 2019 Incident

12. On April 9, 2019 Plaintiff was working as a ticket seller for a boat tour operator.

13. Plaintiff was in Battery Park in lower Manhattan, near State Street between Battery Place and Bridge Street.

14. At approximately 9:30 AM, Plaintiff was approached by Defendants Yu and John Does #1-3.

15. Defendants placed Plaintiff under arrest.

16. Plaintiff had not committed any crime, nor did defendants have probable cause or reasonable suspicion to believe that any crime had been committed.

17. Defendant Yu would later allege that he had personally observed Plaintiff make fraudulent misrepresentations in the course of his ticket selling work.

18. In fact Plaintiff did not make any misrepresentations, nor was it reasonable for any of the defendants to believe he had done so.

19. Defendant's Yu's claim that he had observed Plaintiff made fraudulent misrepresentations was false.

20. Plaintiff was eventually taken to Central Booking and arraigned on charges of fraudulent accosting. Plaintiff was released on his own recognizance.

21. Plaintiff was required to appear in Criminal Court approximately three more times before the case was ultimately dismissed on August 8, 2019.

22. Defendant Yu was the arresting officer for plaintiff. Upon information and belief, Defendant Yu took plaintiff into physical custody, processed his arrest, prepared arrest paperwork related to his arrest, and coordinated with the District Attorney's office related to the prosecution of Plaintiff.

23. Defendant Yu understood that the arrest paperwork he drafted would be distributed to fellow officers as well as the District Attorney's office, and used to determine what if any charges should be brought against Plaintiff.

24. Defendant Yu personally communicated with a representative of the District Attorney's Office, and presented false evidence to the prosecutor despite knowledge that this information would be used to prosecute Plaintiff.

25. As a direct and proximate result of the malicious and outrageous conduct of Defendants set forth, Plaintiff suffered injuries and damages.

July 19, 2019 Incident

26. On July 19, 2019 Plaintiff was working as a ticket seller for a boat tour operator.

27. Plaintiff was in Battery Park in lower Manhattan, near State Street between Battery Place and Bridge Street.

28. At approximately 3:30 PM, Plaintiff was approached by Defendants Yu and John Does #4-6.

29. Defendants placed Plaintiff under arrest.

30. Plaintiff had not committed any crime, nor did defendants have probable cause or reasonable suspicion to believe that any crime had been committed.

31. Plaintiff was taken the NYPD's First Precinct.
32. Plaintiff was issued a summons ticket requiring his appearance in court.
33. Plaintiff was released from the precinct later the same day.
34. The summons ticket issued to Plaintiff and the charges therein were later dismissed.
35. As a direct and proximate result of the malicious and outrageous conduct of Defendants set forth, Plaintiff suffered injuries and damages.

DAMAGES

36. As a direct and proximate result of the acts of defendants, plaintiff suffered the following injuries and damages:

- a. Violation of his right to Due Process of Law under the Fourteenth Amendment to the United States Constitution;
- b. Violation of his rights under the Fourth Amendment to the United States Constitution to be free unreasonable search and seizure;
- c. Loss of Liberty;
- d. Emotional distress, including fear, embarrassment, frustration, extreme inconvenience, and anxiety.

FIRST CAUSE OF ACTION

(42 U.S.C. § 1983 – as to Individual Defendants)

37. The above paragraphs are here incorporated by reference.
38. Defendants have deprived Plaintiff of his civil, constitutional and statutory rights under color of law and have conspired to deprive him of such rights and are liable to Plaintiff under 42 USC § 1983.
39. Defendants' conduct deprived Plaintiff of his right to be free of unreasonable searches and seizures, pursuant to the Fourth and Fourteenth Amendments to the United States Constitution.

40. Defendants falsely arrested Plaintiff, maliciously prosecuted Plaintiff, and failed to intervene in each other's obviously illegal actions.

41. Defendants' conduct also deprived Plaintiff of her right to due process of law, pursuant to the Fourteenth Amendment of the United States Constitution. Defendants presented false evidence against Plaintiff, thereby denying his right to a fair trial.

42. Plaintiff has been damaged as a result of defendants' wrongful acts.

SECOND CAUSE OF ACTION
(False Arrest – as to Individual Defendants)

43. The above paragraphs are here incorporated by reference

44. Defendants subjected plaintiff to false arrest, false imprisonment, and deprivation of liberty without probable cause.

45. Defendants intended to confine plaintiff and in fact confined him.

46. Plaintiff was conscious of the confinement and did not consent to it.

47. The confinement was not privileged.

48. Plaintiff was damaged.

THIRD CAUSE OF ACTION
(Respondeat Superior – As to City of New York)

49. The above paragraphs are here incorporated by reference.

50. The defendants' tortious acts were undertaken within the scope of their employment by Defendant City of New York and in furtherance of the Defendant City of New York's interest.

51. As a result of defendants' tortious conduct in the course of their employment and in furtherance of the business of Defendant City of New York, Plaintiff was damaged.

REQUEST FOR RELIEF

WHEREFORE, Plaintiff respectfully requests that judgment be entered as follows: Plaintiff demands compensatory damages, in the amount not to exceed jurisdictional limits, to the above-stated causes of action against all Defendants; together with costs and disbursements of this action and legal fees pursuant to 42 U.S.C. § 1988; and such other and further relief as this Court may deem just and proper, including injunctive and declaratory relief.

Dated: New York, New York
October 8, 2020

Yours, etc.
LIAKAS LAW, P.C.

By: 

Nicholas Mindicino, ESQ.
Attorneys for Plaintiff
65 Broadway, 13th Floor
New York, New York 10006
(212) 937-7765

[illegible]

I, the undersigned, an attorney admitted to practice in the courts of New York State, state under penalty of perjury that I am one of the attorneys for Plaintiff in the within action; I have read the foregoing SUMMONS AND COMPLAINT and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe to be true. The reason this verification is made by me and not by my client, is that my client are not presently in the County where I maintain my offices. The grounds of my belief as to all matters not stated upon my own knowledge are the materials in my file and the investigations conducted by my office.

Dated: New York, New York
October 8, 2020


NICHOLAS MINDICINO, ESQ.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Obadiah Lashley,

Plaintiff,

- against-

The City Of New York, Sergeant Yingyin Yu,
Shield No. 00087, and John Does #1-6,

Defendants

LIAKAS LAW, P.C.
Attorneys for Plaintiff(s)
65 Broadway - 13th Floor
New York, New York 10006
212-937-7765

SUMMONS and VERIFIED COMPLAINT

STATE OF NEW YORK, COUNTY OF NEW YORK, SS:

Nicholas Mindicino, the undersigned, an attorney admitted to practice in the Courts of New York State, affirms the following:

I further certify that my signature below acts as a "certification" for the documents attached hereto, in compliance with section 130-1.1-a of the Rules of the Chief Administrator (22 NYCRR).

Dated: New York, New York
October 8, 2020



Nicholas Mindicino, ESQ.

PLEASE TAKE NOTICE

- () that the within is a (certified) true copy of a Notice of _____ entered in the Office of the clerk of the within Entry named Court on _____
- () that an Order of which the within is a true copy will be presented for Notice of settlement to the Hon. _____ one of the Judges of the Settlement within named Court, on _____, at _____
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